BEFORE THE PIPELINE AND HAZARDOUS MATERIALS SAFETY ADMINISTRATION UNITED STATES DEPARTMENT OF TRANSPORTATION WASHINGTON, D.C.

Advanced Notice of Proposed Rulemaking	**)**	**Docket Number: PHMSA-2019-0091**
Pipeline Safety: Amendments to Liquefied	**)**	
Natural Gas Facilities	**)**	

COMMENTS OF THE NATIONAL ASSOCIATION OF PIPELINE SAFETY REPRESENTATIVES (NAPSR)

The National Association of Pipeline Safety Representatives ("NAPSR"), established in 1982, is an organization of state agency pipeline safety managers, directors and technical personnel who are responsible for the administration of their state's Pipeline Safety Programs. NAPSR provides an effective mechanism for fostering the federal/state partnership through 50 state agency programs (Gas and Hazardous Liquids) whose mission is, "to strengthen state pipeline safety programs by promoting improved pipeline safety standards, education, training, and technology."

The states are responsible for pipeline safety oversight of approximately[1]:

- 102,988 miles of jurisdictional gas gathering pipelines (93% of U.S. total),
- 103,713 miles of gas transmission pipelines (35% of U.S. total), and
- 2,361,946 miles of gas distribution main and service pipelines (>99% of U.S. total).

Additionally, NAPSR members oversee the safety of 147 liquefied natural gas (LNG) plants (80% of U.S. total) and 194 LNG tanks (71% of U.S. total).

The responsibility for oversight and legal jurisdiction (by agreement with PHMSA or otherwise) of these pipelines is borne by all NAPSR member states. As PHMSA partners, the state members of NAPSR have an interest in developing regulations that not only increase pipeline safety, but that are fair, clear, unambiguous, and consistent.

General Comments

On May 5, 2025, the U.S. Department of Transportation ("DOT"), Pipeline and Hazardous Materials Safety Administration ("PHMSA"), published in the Federal Register an Advanced Notice of Proposed Rulemaking ("ANPRM") entitled *"Pipeline*

[1] Based on 2024 data.

Safety: Amendments to Liquefied Natural Gas Facilities", Docket Number PHMSA-2019-0091, RIN 2137-AF45, to solicit stakeholder feedback on potential amendments to the pipeline safety regulations governing LNG in 49 CFR Part 193.

Consolidated NAPSR member comments on the specific rule elements are presented below. Although every effort was made to present a consensus opinion, NAPSR acknowledges that there may be members that do not necessarily agree with all the comments presented below. Such members are entitled to and may submit separate comments on behalf of their own state program.

Specific Comments

The specific comments presented below follow the numbering protocol as used in the ANPRM for each question. The comments represent the general position of NAPSR as an organization. The comments are a result of consideration of all those NAPSR members who responded to our internal request for comments.

A. PHMSA's enabling statute at 49 U.S.C. § 60101(a)(14) defines an LNG facility subject to PHMSA's authority as "a gas pipeline facility used for transporting or storing liquefied natural gas, or for liquefied natural gas conversion, in interstate or foreign commerce." Excluded from this definition is "any part of a structure or equipment located in navigable waters."

1. What regulatory amendments could improve or clarify the applicability of PHMSA's Part 193 regulations to LNG facilities under its statutory authority? Should PHMSA's regulations be amended to clarify the boundaries of its regulatory authority with respect to some or all categories of LNG facilities? Which provisions (including regulatory definitions) merit revision and how should they be modified?

NASPR comment: PHMSA may wish to clarify where the boundary between Part 193 and Part 192 jurisdiction is, both for stationary and mobile/temporary LNG facilities. Certain Part 192 required functions such as odorization and overpressure protection of the downstream pipeline are often located within the LNG facility, which can create confusion of where jurisdiction for each Part is applicable or if there is any overlap.

B. The term "LNG facility" is defined in PHMSA's enabling statute at 49 U.S.C. § 60101(a)(14) and PHMSA implementing regulations at 49 CFR 193.2007. LNG facilities subject to Part 193 requirements include "baseload" facilities, "peak-shaver" facilities, "temporary" or "mobile" LNG facilities, and "satellite" LNG facilities.

1. How many of each of these categories of LNG facilities are projected to come into existence over the next two decades? What function(s) do they each currently serve in the interstate natural gas transportation system, and are there any emerging applications for those facilities?

NAPSR comment: The application for LNG facilities NAPSR oversees is primarily for usage during times of peak demand. NAPSR members have observed an increase in new intrastate peak-shaving, satellite, and mobile/temporary facilities constructed or brought into operation in recent years. NAPSR is aware of at least four additional intrastate peak-shaving facilities proposed to be built within the next five years.

2. Are there material differences in the characteristics (*e.g.*, capacity or size; physical processes) of and among those categories of LNG facilities that merit distinguishable treatment under Part 193? What proportion of each category of LNG facilities are operated by "small entities" (small businesses, small organizations, or small government jurisdictions) as defined in the Regulatory Flexibility Act (5 U.S.C. § 6010 et seq.) and its implementing regulations?

NAPSR comment: Peak-shaving and satellite facilities may merit distinguishable treatment given the infrequent and seasonal operation of many of their components. Most peak-shaving and satellite facilities operate seasonally with vaporization during peak usage months and liquefaction or truck filling during off-peak usage months. Peak-shaving and satellite facilities typically will be called upon to operate during the most extreme weather conditions, which may be extended periods of time between when operation is required. If routine maintenance is not required, and there are months or years between demand, critical safety components may not be required to operate for extended periods of time, which may create safety issues. Given this nature of their operations, peak-shaving and satellite facilities are suited for the existing prescriptive requirements PHMSA currently has incorporated in Part 193 and NFPA 59A.

Mobile/temporary LNG facilities may also merit distinguishable treatment due to the non-permanent and modular nature of the facilities. Control systems at mobile/temporary facilities are a notable component which may require distinguishable treatment. For example, mobile/temporary facilities may contain several different temporary trucks or skids, each with independent emergency shutdown systems (ESD). In the event of an emergency or incident, it may require the activation of multiple ESDs to safely shut down a facility. This does not appear to be contemplated in Part 193 nor any version of NFPA 59A. PHMSA may wish to consider if mobile/temporary LNG facilities merit distinguishable treatment under Part 193 to ensure all control systems such as ESDs are adequately integrated to ensure safety.

NAPSR is not aware of any peak-shaving or mobile/temporary facilities operated by small entities. There are three satellite LNG facilities operated by municipal operators which may be considered small government jurisdictions.

C. LNG facility reporting requirements are set forth at 49 CFR 193.2011.

1. Is there information required in the annual, incident, and safety related condition reports required by PHMSA regulations with limited or no safety value any of the categories of Part 193-regulated LNG facilities?

NAPSR comment: NAPSR is supportive of the information collected in the reports and believes it provides safety value as it provides for tracking, evaluation, and analysis of incidents, and of other information that may be essential to inspection planning or other enforcement activities. PHMSA may wish to clarify the difference between “Abandoned” and “Retired” status in Part B of its annual report instructions. It is not clear what each term means and in what scenarios each is to be applied.

2. Is there information required in the reports that is duplicative with the information required to be submitted to other state or federal regulatory authorities?

NAPSR comment: NAPSR is supportive of the information collected in the reports and is not aware of any duplicative information that is required to be submitted to other state authorities on a consistent basis across the country.

3. What incremental, per-unit costs and benefits may arise from amending § 193.2011 to clarify that safety-related condition reporting would be required not only for “in-service” LNG facilities, but also safety-related conditions that occur during commissioning and initial start-up?

NAPSR comment: NAPSR considers it a facility to be in-service and already subject to safety-related condition reporting as soon as gas or LNG, defined by 49 CFR 193.2007, is introduced to the facility, including during commissioning and initial start-up. Safety-related conditions can have a public safety impact if the integrity of the facilities are compromised regardless of whether it is being commissioned or already in service. If PHMSA determines an amendment is required to clarify this, NAPSR would support such a revision.

D. Current Part 193 regulations incorporate much of NFPA 59A-2001’s provisions pertinent to LNG facility siting (§ 193.2051), design (§ 193.2101(a)), construction (§ 193.2301), equipment (§ 193.2401), and fire protection (§ 193.2801).

1. Stakeholders have asserted that compliance with provisions of NFPA 59A-2001 has become increasingly impracticable as vendors and the industry itself employ more recent consensus industry standards in their activities. Please describe noteworthy examples of tension between NFPA 59A-2001 provisions referenced in current PHMSA regulations and more recent consensus industry standards. What incremental, per-unit costs (including, but not limited to, those arising from personnel having to compare operator practices with provisions of NFPA 59A-2001 referenced in current PHMSA regulations) arise from operators having to navigate those tensions?

NAPSR comment: The 2001 version of NFPA 59A contains errors in Section 2.3.4(f) which PHMSA noted in footnote 7 of interpretation PI-23-0018. The error citing Section 11.4.5(b) rather than 11.4.5.1(b) creates tension as it does not clearly indicate whether mobile/temporary LNG facilities must have written procedures available to cover transfer, emergency, and normal operating procedures. Additionally, Section 11.4.5.2(c), which should have been referenced in Section 2.3.4(f) instead of 11.4.5.2(b), also contains an error that states wheels shall be “checked” instead of “chocked.” Adoption of the 2023 edition of NFPA 59A would correct these errors.

Pressure vessels are another example of tension between standards referenced in current PHMSA regulations and more recent industry standards. Manufacturers of pressure vessels and other equipment are only using the most recent codes and standards. In particular, the Boiler and Pressure Vessel code requires the use of the most recent code for the equipment to be stamped. This results in requiring personnel to compare the entire incorporated by reference edition of a standard with the current edition to ensure that equipment meets requirements equivalent or more stringent than the edition incorporated by reference.

2. Should PHMSA consider a narrow rulemaking to update only the NFPA 59A standard to the 2023 edition and pursuing a broader part 193 update afterward? What would the incremental costs and benefits be of an update of the NFPA 59A standard to 2023?

NAPSR comment: NAPSR is supportive of a narrower rulemaking to update the NFPA 59A standard to the 2023 edition and pursuing a broader update of 193 afterward. NAPSR suggests that the narrow rulemaking encompass all standards incorporated in § 193.2013, if appropriate. The adoption of the newer NFPA 59A standard and other standards incorporated in § 193.2013 will enhance pipeline safety, narrower rulemaking, and streamline updating Part 193 to incorporate the newer edition of these standards.

5. Part 193 regulations in several places broadly incorporate pertinent NFPA 59A-2001 requirements provided they do not conflict with specific Part 193 provisions; such language appears in Subparts B (“Siting”), C (“Design”), D (“Construction”), E (“Equipment”), and I (“Fire Protection). What incremental, per-unit costs and benefits would arise from substituting NFPA 59A-2023 provisions for the current reference to NFPA 59A-2001 provisions (or superseding Part 193 provisions) in each of those subparts of Part 193? Should PHMSA exclude some NFPA 59A-2023 provisions from incorporation by reference in those subparts? To which categories of LNG facilities should any NFPA 59A-2023 provisions pertinent to those subparts apply?

NAPSR comment: NAPSR is supportive of substituting NFPA 59A-2023 provisions for language that appears in Subparts B, C, D, E, and I. The adoption of the more recent NFPA 59A standard will enhance pipeline safety. For Subpart B, NAPSR suggests PHMSA clarify in Part 193 which siting chapter in NFPA 59A-2023 it intends to adopt. NAPSR is supportive of incorporating applicable siting requirements in Chapter 5 for peak-shaving facilities.

6. What incremental, per-unit costs and benefits would arise should PHMSA propose to incorporate by reference the entirety of NFPA 59A-2023? Please provide those estimated, incremental costs and benefits on a per-chapter basis where possible, highlighting provisions in each NFPA 59A-2023 chapter for which compliance would be particularly burdensome or costly for particular categories of LNG facility operators.

NAPSR comment: If PHMSA adopts NFPA 59A-2023 in its entirety, PHMSA may wish to clarify whether it intends to incorporate the Annexes included for informational purposes as mandatory or permissive.

7. Which mandatory provisions of NFPA 59A-2023 should be made permissive if incorporated into the PHMSA's Part 193 regulations? Are there certain mandatory elements of NFPA 59A-2023 that should remain mandatory for some categories of LNG facilities but not others? Should any non-mandatory provisions in NFPA 59A-2023 be mandatory, and what incremental, per-unit costs and benefits would arise?

NAPSR comment: NAPSR is supportive of the mandatory elements of NFPA 59A-2023 remaining mandatory for peak-shaving, satellite, and temporary/mobile LNG facilities.

9. What incremental, per-unit costs and benefits would arise in connection with the incorporation by reference in Part 193 of NFPA 59A-2023 Chapter 14 requirements governing "mobile and temporary LNG facilities"? Are there particular requirements in NFPA 59A-2023 Chapter 14 that would entail noteworthy incremental, per-unit compliance costs and benefits?

NAPSR comment: NAPSR is supportive of the incorporation by reference in Part 193 of NFPA 59A-2023 Chapter 14 requirements and believes the incorporation of additional safety requirements for mobile/temporary LNG facilities is necessary to ensure the safe operation of such facilities. Currently, 49 CFR 193.2019 exempts mobile and temporary LNG facilities for all requirements of 49 CFR 193 if the facilities are in compliance with applicable sections of NFPA 59A. PHMSA has stated in interpretation response PI-23-0018 that the "applicable sections" of NFPA 59A-2023 include Section 2.3.4 and all other sections referenced by Section 2.3.4. Several additions have been made to the applicable sections in NFPA 59A since the 2001 version, which if incorporated will enhance safety. As an example, Section 2.3.4 and its references in the 2001 version of NFPA 59A do not require an operator of a mobile/temporary LNG facility to have or follow any procedures other than a written plan of initial training. Requirements for operation and maintenance procedures are now addressed in Section 14.1.18 of the 2023 edition of NFPA

59A, and the incorporation of those requirements, among the others in Chapter 14, would enhance safety of mobile/temporary LNG facilities.

13. What would be the initial and annual recurring incremental, per-unit costs and benefits to operators from generation and implementation of a robust mechanical and electrical lockout program in different categories of LNG facilities?

NAPSR comment: NAPSR is supportive of the generation and implementation of a robust mechanical and electrical lockout program for peak-shaving, satellite, and temporary/mobile LNG facilities.

14. Are there any PHMSA interpretations of its Part 193 regulations whose safety value does not justify any associated compliance costs for each category of LNG facilities? If so, what are the associated compliance costs? Are there any interpretations that merit codification in Part 193 regulations?

NAPSR comment: PHMSA interpretation PI-10-0021 merits codification in Part 193 regulations to clarify which flammable vapor dispersion models are approved by PHMSA. This interpretation is referenced in PHMSA's Frequently Asked Question (FAQ #H7) and indicates that the source model for DEGADIS 2.1 required by § 193.2059 does not satisfy the PHMSA requirements for a source term model. PHMSA has since approved alternate models for the determination of vapor dispersion exclusion zones, described in FAQ #H6, which NAPSR believes should be incorporated into Part 193 regulations to provide clarity on these requirements.

E. GAO in its August 2020 report identified consensus industry standards other than NFPA 59A listed in § 193.2013 and currently incorporated by reference throughout PHMSA's Part 193 regulations meriting updating to more recent editions.

2. To which edition of each standard should PHMSA update its Part 193 regulations? Please provide technical, safety, and economic reasons for updating Part 193 regulations to reference a particular edition of each standard.

NAPSR comment: NAPSR is supportive of PHMSA incorporating newer editions of industry standards which enhance safety.

G. Section 110 of the PIPES Act of 2020 requires PHMSA to update Part 193 operating and maintenance standards for "large-scale" LNG facilities (other than peak shaving facilities) to provide for a "risk-based regulatory approach" that PHMSA ensures will achieve an equivalent level of safety to current, prescriptive Part 193 operating and maintenance standards.

1. What is the appropriate metric and threshold for determining whether an

LNG facility is a large-scale LNG facility and why is it appropriate?

NAPSR comment: PHMSA should ensure that the definition of a large-scale LNG facility does not inadvertently include peak-shaving facilities, as such facilities are exempted in Section 110 of the PIPES Act of 2020. NAPSR believes that satellite and mobile/temporary also do not meet the definition of a large-scale LNG facility, as such facilities typically have lower storage volumes and lower vaporization rates due to their reliance on trucked LNG.

H. Section II of this ANPRM identifies Executive Orders directing PHMSA and other agencies to reduce regulatory burdens on the U.S. energy industry.

1. Are there current aspects of PHMSA regulations that are particularly burdensome on the ability of industry to operate LNG facilities that PHMSA should consider amending or rescinding?

NAPSR comment: The majority of PHMSA's safety regulations were instituted in direct response to serious incidents, many of which involved injuries, fatalities, or significant property damage. As PHMSA is reviewing its regulations to reduce regulatory burdens, PHMSA should exercise caution when considering the amendment or rescission of existing regulations governing LNG facilities. While regulatory efficiency is important, it must not come at the expense of safety.

NAPSR would like to express thanks to PHMSA for the opportunity to provide comments on this topic.

Respectfully submitted by:

National Association of Pipeline Safety Representatives

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